

25TRCV00895 25TRCV00895

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Case Number: 25TRCV00895 Hearing Date: August 26, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – August 26, 2026

Calendar No.

PROCEEDINGS

Bryan

A. Loaiza Palacios v. American Honda Motor Co., et al.

25TRCV00895

1. Brian A. Loaiza Palacios' Motion to Compel Further

Responses to Request for Production of Documents, Set One, and Request for

Sanctions

TENTATIVE RULING

Bryan A. Loaiza Palacios' Motion to Compel Further

Responses to Request for Production of Documents, Set One, and Request for

Sanctions is granted, in part, and denied, in part.

Background

Plaintiff's Complaint was filed on March 19, 2025. Plaintiff

alleges the following facts. Plaintiff alleges violations of the Song-Beverly

Act concerning defects to his 2024 Honda Accord.

Motion to Compel Further Responses to Requests for

Production of Documents

A party responding to an inspection demand shall

respond to each demand with one of the following: a statement the party will

comply with the demand, a representation the party lacks the ability to comply

with the demand, or an objection. (Code

Civ. Proc., § 2031.210, subd. (a).) A

response to an inspection demand may be inadequate because it is evasive or

incomplete; contains an incomplete statement of compliance; an inadequate,

incomplete, or evasive representation of inability to comply; or meritless or

overly general objections to a demand.

(Code Civ. Proc., § 2031.310, subd. (a).)

If a demanding party believes the responding party

responded inadequately, the demanding party may move for an order compelling

further response. (Code Civ. Proc.,

§ 2031.310, subd. (a).) “Unless

notice of this motion is given within 45 days of the service of the verified

response, or any supplemental verified response, or on or before any specific

later date to which the demanding party and the responding party have agreed in

writing, the demanding party waives any right to compel a further response to the

demand.” (Code Civ. Proc., § 2031.310,

subd. (c).)

Meet and Confer

Plaintiff set forth a meet and confer declaration in

substantial compliance with CCP § 2031.310(b)(2). (Declaration, Daniel Gopstein, ¶¶ 13-24).

Motion to Compel

Plaintiff seeks further responses to Request for

Production of Documents (“RFP” or “Request[s]”) Nos. 1 to 31. The parties did

not conduct an informal discovery conference. However, the parties were

informed to continue to meet and confer to narrow the items in dispute and Plaintiff

was ordered to submit a short brief as to the items still in dispute. (Court’s

Minute Order, dated April 9, 2026.) While Plaintiff did not submit a short

brief, Plaintiff’s Reply only set forth arguments concerning Plaintiff’s

entitlement to responses to RFPs Nos. 8, 16, 23-28, and 30-31. Thus, the ruling

is directed specifically to those items which apparently still remain in dispute.

A party responding to an

inspection demand shall respond to each demand with one of the following: a

statement the party will comply with the demand, a representation the party

lacks the ability to comply with the demand, or an objection. Code Civ. Proc., § 2031.210, subd. (a).) CCP § 2031.230 states: "A representation of

inability to comply with the particular demand for inspection, copying,

testing, or sampling shall affirm that a diligent search and a reasonable

inquiry has been made in an effort to comply with that demand. This statement

shall also specify whether the inability to comply is because the particular

item or category has never existed, has been destroyed, has been lost,

misplaced, or stolen, or has never been, or is no longer, in the possession,

custody, or control of the responding party. The statement shall set forth the

name and address of any natural person or organization known or believed by

that party to have possession, custody, or control of that item or category of

item."

The motion is denied as to

Requests 8, 16, and 31.

As to Requests 8 and 31, Defendant served a response

in substantial compliance of CCP § 2031.230.

Request 8 states: "Produce all DOCUMENTS, including recalls, technical service bulletins, and dealer advisories that were issued for the SUBJECT VEHICLE. [This request requires that the responding party produce the entire document. A production that only lists the name, number, and/or title of the document will not be responsive to this request]."

Defendant's substantive response states: "Pursuant to a diligent search and reasonable inquiry, AHM has no documents responsive to this request specifically issued for the SUBJECT VEHICLE, and no responsive documents exist or have ever existed."

Request 31 states: "All DOCUMENTS that refer to, reflect, or relate to any Field Service Action issued, or in the process of being issued, in response to complaints experienced by Plaintiff as described in Defendant's warranty history/summary and within the line items of the repair orders created at Defendant's authorized repair facility."

Defendant's substantive response stated: "AHM has made a diligent search and reasonable inquiry and has no "Field Service Actions," and no responsive documents have ever existed."

Defendant's responses are verified under penalty of perjury. To the extent that Plaintiff disagrees with the response and believes that Defendant is withholding documents, Plaintiff has not established, at this

time, that Defendant is misusing discovery by withholding documents. The evidence submitted by Plaintiff, in the form of Plaintiff's counsel's declaration, is conclusory regarding the allegation of withholding of documents. (Decl., Daniel Gopstein, ¶ 15). Even in Plaintiff's Reply, Plaintiff contends that he discovered facts to show that Defendant may be withholding documents, but, it appears that these facts were discovered after the motion was filed. If Defendant is indeed withholding documents, Plaintiff has the ability to utilize the proper procedural mechanisms to seek appropriate sanctions. However, under the facts and evidence presented with this motion, the Court cannot definitively state that responsive documents are being withheld by Defendant.

As to Request 16, the request is overly broad.

Request 16 states: "All DOCUMENTS which evidence, describe, refer, or relate to YOUR Call Center Policies and Procedures for escalating customer complaints relating to any defects present in their vehicle."

Request 16 is overly broad in time and scope as it seeks information essentially pertaining to any complaints of any vehicle, at any time, without narrowing the request to pertain to the same, make, model of Plaintiff's vehicle.

The motion is granted as to Requests 23 to 28, and 30.

As to Requests 23 to 28, Defendant failed to serve a

response that is substantially compliant with CCP § 2031.230.

Requests 23 to 28 specifically request documents

concerning Defendant's "Warranty Policy and Procedure Manuals."

Defendant's substantive responses stated: "Pursuant to

a diligent search and reasonable inquiry, AHM has no automotive "Warranty

Policy and Procedure Manual" provided to authorized Honda repair

facilities and no such manual has ever existed in AHM's possession, custody,

and control."

By qualifying the response to state that no documents

have never existed in Defendant's possession, custody, and control, Plaintiff

is entitled to a response which also indicates the name and address of any natural person or organization known or believed

by that party to have possession, custody, or control of that item or category

of item.

Request 30 states: "All DOCUMENTS, in the form of a

list or compilation, of other Customer Complaints in YOUR electronically stored

information of database(s) that are SUBSTANTIALLY SIMILAR to complaints made by

Plaintiff with respect to the SUBJECT VEHICLE in other 2024 Honda Accord

vehicles. "SUBSTANTIALLY SIMILAR" shall

mean similar customer complaint that would be the same nature of the reported system, malfunction, trouble code, Technical Service Bulletin Recommendation, dashboard indicator light, or other manifestation of a repair problem, as description listed in any warranty summary or repair order for the SUBJECT VEHICLE. [The customer complaints in this matter can be found in Defendant's warranty history/summary and within the line items of the repair orders created at Defendant's authorized repair facility. If YOU are having issues determining Plaintiff's Complaints, Plaintiff is willing to meet and confer and list out the specific complaints and the language used to describe them. This should not include any routine or scheduled maintenance items.]”

Defendant objected to this request. The Court rules

that Defendant has not established that the objections are meritorious, and the

Court orders a further response that are free from the asserted objections. In *Donlen v. Ford Motor Co.* (2013) 217

Cal.App.4th 138, 154, the Court of Appeal held that the trial court

did not err in refusing to exclude evidence with respect to vehicles other than

Plaintiff's vehicle because Plaintiff's expert testimony was properly limited

to the same type of transmission involved in Plaintiff's vehicle as well as the

other vehicles at issue. Here, the request is limited to pursuing discovery

related to similar complaints of defects that relate to the same year, make,

and model as Plaintiff's vehicle. Thus, as to Request 30, the motion is

granted.

Therefore, Plaintiff's motion is denied as to Requests

8, 16, and 31.

Plaintiff's motion is granted as to Requests 23 to 28,

and 30. Therefore, Defendant is ordered to serve a further verified response to

Requests 23 to 28, and 30 within 20 days of this date.

Plaintiff and Defendant's respective requests for

sanctions are denied.

Plaintiff is ordered to give notice of this ruling.